

III

In addition to relying on the reasoning of the Court of Appeals, the Creightons advance three alternative grounds for affirmance. All of these take the same form, *i. e.*, that even if Anderson is entitled to qualified immunity under the usual principles of qualified immunity law we have just described, an exception should be made to those principles in the circumstances of this case. We note at the outset the heavy burden this argument must sustain to be successful. We have emphasized that the doctrine of qualified immunity reflects a balance that has been struck "across the board," *Harlow, supra*, at 821 (BRENNAN, J., concurring). See also *Malley*, 475 U. S., at 340 ("For executive officers in general, . . . qualified immunity represents the norm" (quoting *Harlow, supra*, at 807)).⁴ Although we have in narrow circumstances provided officials with an absolute immunity, see,

Government and various state governments have established programs through which they reimburse officials for expenses and liability incurred in suits challenging actions they have taken in their official capacities. Because our holding today does not extend official qualified immunity beyond the bounds articulated in *Harlow* and our subsequent cases, an argument as to why we should not do so is beside the point. Moreover, even assuming that conscientious officials care only about their personal liability and not the liability of the government they serve, the Creightons do not and could not reasonably contend that the programs to which they refer make reimbursement sufficiently certain and generally available to justify reconsideration of the balance struck in *Harlow* and subsequent cases. See 28 CFR § 50.15(c) (1987) (*permitting* reimbursement of Department of Justice employees when the Attorney General finds reimbursement appropriate); 5 F. Harper, F. James, & O. Gray, *Law of Torts* § 29.9, n. 20 (2d ed. 1986) (listing various state programs).

⁴These decisions demonstrate the emptiness of the dissent's assertion that "[t]oday this Court makes the fundamental error of simply assuming that *Harlow* immunity is just as appropriate for federal law enforcement officers . . . as it is for high government officials." *Post*, at 654 (footnote omitted). Just last Term the Court unanimously held that state and federal law enforcement officers were protected by the qualified immunity described in *Harlow*. *Malley v. Briggs*, 475 U. S. 335 (1986). We see no reason to overrule that holding.